

26IWUD00453 26IWUD00453

County: los-angeles

Division: Civil Law and Motion

Department: 8

Hearing date: 2026-06-24

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Case Number: 26IWUD00453 Hearing Date: June 24, 2026 Dept: 8

Tentative on the Defendants' Motion to Tax Costs:

The Plaintiff in this action requested the court dismiss the action without prejudice on April 23, 2026. The court entered the requested dismissal that day. On May 4, 2026, the Defendants filed a Memorandum of Costs, and on May 15, 2026, the Plaintiff filed its own Memorandum of Costs. On May 20, 2026 the Defendants filed a Motion to Tax Costs arguing the Plaintiff is not a prevailing party under Code of Civil Procedure section 1032, subdivision (b), because the Plaintiff voluntarily dismissed this action.

The Defendants are correct. Under Code of Civil Procedure section 1032, subdivision (b), a "prevailing party" is entitled to recover costs as a matter of right unless otherwise provided by statute. (See *Huerta v. Kava Holdings, Inc.* (2018) 29 Cal.App.5th 74, 79; *Charton v. Harkey* (2016) 247 Cal.App.4th 730, 737.) "Prevailing party" includes "a defendant in whose favor a dismissal is entered" (§ 1032, subd. (a)(4)) even when entered without prejudice (see *Riverside Mining Limited v. Quality Aggregates* (2024) 104 Cal.App.5th 269, 275, 277). As a result, the Defendants are entitled to their costs, and the Plaintiff is not.

The court GRANTS the Defendants' motion to tax costs.